

Produit : Electronic / Measuring devices

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USA

Product's definition

Category

In which category the product is classified ?

ELECTRONIC / MEASURING DEVICES - Mobile Phone / Products with WIFI

Definition

What is the exact definition of the product ?

And if it exists, what is the interpretation of the authorities regarding it ?

Federal Law:

FCC regulations for radio frequency devices: A mobile phone will be considered an "intentional radiator" under Federal Communication Commission (FCC) rules. Intentional radiators are defined as any "device that intentionally generates and emits radio frequency energy by radiation or induction." [47 C.F.R. § 15.3\(o\)](#). According to [FCC guidance](#), this also includes products that contain Bluetooth or WiFi connectivity. See the "Electronic equipment with Bluetooth" card for further information on regulations applicable to intentional radiators. Note that (1) where that card refers to Bluetooth specifically, its intentional radiator requirements are equally applicable to mobile phones and (2) mobile phones will be subject to the "Certification" level of equipment authorization (FCC's most stringent authorization process).

Note that if a tactile pad is not considered an "intentional radiator," it would almost certainly be considered an "unintentional radiator." An unintentional radiator is defined as "a device that intentionally generates radio frequency energy [Electromagnetic energy at any frequency in the radio spectrum between 9 kHz and 3,000,000 MHz] for use within the device, or that sends radio frequency signals by conduction to associated equipment via connecting wiring, but which is not intended to emit RF energy by radiation or induction." [47 C.F.R. § 15.3\(z\)](#). According to [FCC guidance](#), the majority of modern electronic products that are not considered "intentional radiators" will be regulated as "unintentional radiators." For requirements applicable to unintentional radiators, please see the Sun Charger, Electrical Charger, USB Charger card.

Federal (DOE) Energy Efficiency regulations: Some of the products in this category may include a regulated "battery charging system" (BCS). BCS are defined under federal law as a "device that charges batteries for consumer products, including battery chargers embedded in other consumer products." To the extent the products in this category are used to charge batteries, they will be considered "battery chargers." [10 C.F.R. § 430.2](#). See the corresponding sections of the Sun Charger, Electrical Charger, USB Charger card for additional details.

Batteries: Electronic products that rely on battery power may be subject to battery-related regulations. Assuming that Decathlon's mobile phones or tactile pads contain rechargeable batteries, see the "Batteries" card for further information on regulations applicable batteries and DOE-regulated battery chargers.

California (Batteries and CEC Battery Charging System): Some of the products in this category may include a regulated "battery charging system" (BCS). BCS are defined under California law as "all rechargeable batteries or devices incorporating

a rechargeable battery and the chargers used with them.” [20 Cal. Code Regs. §1602\(w\)](#). See the corresponding sections of the Sun Charger, Electrical Charger, USB Charger card for additional details. Some exemptions from the California BCS requirements apply to federally regulated BCS.

Some of the products in this category may also include batteries. Please see the "Batteries" card for potentially applicable definitions.

Massachusetts (mercury added products): A “mercury-added product” is a product to which the manufacturer intentionally introduces mercury, including, but not limited to, electric lamps, thermostats, automotive devices, electric switches, medical or scientific instruments, electric relays or other electrical devices.

New York (mercury-added consumer products): A “mercury-added consumer product” is “any device or material into which elemental mercury or mercury compounds are intentionally added during such device's or material's formulation or manufacture, and in which the continued presence of mercury is required to provide a specific characteristic, appearance or quality, or to perform a specific function. Such term shall include, but not be limited to mercury-containing: . . . (b) thermometers . . . (d) medical or scientific instruments; (e) electrical relays and other electrical devices; (f) lamps; and (g) batteries sold to consumers, not including button batteries.” ([Environmental Conservation Law § 27-2101](#)).

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California (electronics recycling): California has provisions similar to EU RoHS and EU WEEE for "covered electronic devices" defined to include electronic products with a screen size of greater than 4 inches measured diagonally, which are capable of playing a moving image (video display devices). It does not appear that Decathlon mobile phones meet this definition, but tactile pads would meet this definition. See program overview <https://calrecycle.ca.gov/electronics/>.

Illinois Law (electronics recycling): Although mobile phones would not qualify as computers under Illinois law, certain tactile pad models may qualify as computers, particularly if the screen size is larger than six inches measured diagonally. A “computer” is defined as a desktop or notebook computer used only in a residence and does not include mobile telephones, portable digital assistants (PDAs), MP3 players, or computer peripherals (cables, mice, keyboards) ([Illinois Consumer Electronics Recycling Act, 415 ILCS 151](#). Note that this law is repealed on December 31, 2026). “Computer” includes a “tablet computer,” which is defined as an electronic magnetic, optical, electrochemical, or other high-speed data processing device performing logical, arithmetic, or storage functions for general purpose needs that are met through interaction with a number of software programs contained therein, and that is not designed to exclusively perform a specific type of logical, arithmetic, or storage function or other limited or specialized application. Human interface with a tablet computer is achieved through a touch-screen and video display screen greater than 6 inches in size (all of which are contained within the unit that comprises the tablet computer). Tablet computers may use an external or internal power source. “Tablet computer” does not include a portable hand-held calculator, a portable digital assistant, or a similar specialized device.

Maine (electronic waste recycling): “Covered electronic device” means a desktop printer, a video game console, a cathode ray tube, a cathode ray tube device, a flat panel display or similar video display device with a screen that is greater than 4 inches measured diagonally and that contains one or more circuit boards. “Covered electronic device” does not include an automobile; a household appliance; a large piece of commercial or industrial equipment, such as commercial medical equipment, that contains a cathode ray tube, a cathode ray tube device, a flat panel display or similar video display device that is contained within, and is not separate from, the larger piece of equipment; other medical devices as that term is defined under the Federal Food, Drug, and Cosmetic Act; or a cellular telephone subject to section 2143. [ME Stat. Tit. 38, §1610\(2\)\(C\)](#).

Massachusetts (cathode ray tube disposal): Broken cathode ray tubes (CRTs) and processed CRT glass undergoing recycling must be managed in compliance with [310 CMR 30.104\(3\)\(h\)](#). It does not appear that any products in this category would contain CRTs.

New Jersey Law (electronic recycling): For purposes of New Jersey's laws pertaining to electronic equipment recycling, “covered electronic device” is defined to include “a desktop or personal computer, computer monitor, portable computer, or television sold to a consumer.” ([N.J.S.A. § 13:1E-99.95](#)). To qualify as computers or televisions, the device must have a screen greater than four inches when measured diagonally. If a Decathlon tactile pad falls within the NJ definition of covered electronic device, it would be subject to recycling, registration, reporting and labeling requirements. (See [N.J.S.A. § 13:1E-99.94 et seq.](#)).

New York (electronics recycling): For purposes of New York's laws pertaining to electronic equipment recycling, “covered electronic equipment” is defined to include “small electronic equipment,” which means “any portable digital music player that has memory capability and is battery-powered, video cassette recorder, a digital video disc player, digital video recorder, digital converter box, cable or satellite receiver, or electronic or video game console, and includes any cable, cord, or wiring

permanently affixed to or incorporated into any such product.” (N.Y. Env’t Conserv. [§ 27-2601](#)). It appears that an MP3 player would fall within the definition of "covered electronic equipment" under the New York law.

Texas Law (electronic recycling): For purposes of Texas’s laws pertaining to electronic equipment recycling, “computer equipment” means a “desktop or notebook computer and includes a computer monitor or other display device that does not contain a tuner.” ([Tex. Health & Safety Code Ann. § 361.952](#)). Note that this definition includes tablet computers with screens larger than four inches when measured diagonally. ([30 Tex. Admin. Code § 328.135](#)). If Decathlon's tactile pads meet the definition above, then they would be covered by the Texas electronic recycling, registration, and other requirements. See [Tex. Health & Safety Code Ann. § 361.951 et seq.](#) and [30 Tex. Admin. Code § 328.131 et seq.](#)

Washington Law (electronic recycling): Manufacturers of and retailers that sell certain “covered electronic products (CEPs)” in Washington must comply with registration, labeling, fee, and recycling requirements ([RCW 70.95N](#), [WAC 173-900](#)). “Covered electronic product” includes a cathode ray tube or flat panel computer monitor having a viewable area greater than four inches when measured diagonally, a desktop computer, a laptop or a portable computer, or a cathode ray tube or flat panel television having a viewable area greater than four inches when measured diagonally that has been used in the state by any covered entity regardless of original point of purchase. “Covered electronic product” does not include: (a) A motor vehicle or replacement parts for use in motor vehicles or aircraft, or any computer, computer monitor, or television that is contained within, and is not separate from, the motor vehicle or aircraft; (b) monitoring and control instruments or systems; (c) medical devices; (d) products including materials intended for use as ingredients in those products as defined in the federal food, drug, and cosmetic act (21 U.S.C. Sec. 301 et seq.) or the virus-serum-toxin act of 1913 (21 U.S.C. Sec. 151 et seq.), and regulations issued under those acts; (e) equipment used in the delivery of patient care in a health care setting; (f) a computer, computer monitor, or television that is contained within a clothes washer, clothes dryer, refrigerator, refrigerator and freezer, microwave oven, conventional oven or range, dishwasher, room air conditioner, dehumidifier, or air purifier; or (g) handheld portable voice or data devices used for commercial mobile services as defined in 47 U.S.C. Sec. 332 (d)(1). [RCW 70A.500.020](#). Certain products are excluded, including cell phones, but tactile pads and tablets would be covered if they meet the Washington definition of CEP provided above.

Comments

Comments

Labelling

Language

In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.

English

Mandatory labelling on product

What are the mandatory labelling on the product ?

Federal Law:

FCC Radio Frequency Devices

For requirements applicable to “intentional radiators,” which includes mobile phones, please see the "Electronic equipment with Bluetooth" card. Note that mobile phones will be subject to the “Certification” level of equipment authorization.

For requirements applicable to unintentional radiators (if applicable), please see the Sun Charger, Electrical Charger, USB Charger card.

Country of Origin Marking Requirements

All products are required to comply with country of origin marking regulations. See [19 U.S.C. § 1304](#); [19 CFR § 134.11](#);

and importation section of this conformity card. When an article or its container is required to be marked with the country of origin, the marking is considered sufficiently permanent if it will remain on the article or container until it reaches the ultimate purchaser. See <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf>.

Batteries

For requirements applicable to products that contain batteries or DOE-regulated battery chargers, please see the "Batteries" card and Sun Charger, Electrical Charger, USB Charger cards, respectively.

FCC Voluntary Labeling Program: The FCC has established a voluntary labeling program for wireless consumer Internet of Things (IoT) products. The FCC's definition of an IoT device is: (1) an internet-connected device capable of intentionally emitting RF energy that has at least one transducer (sensor or actuator) for interacting directly with the physical world, coupled with (2) at least one network interface (e.g., Wi-Fi, Bluetooth) for interfacing with the digital world. 47 CFR 8.203(i). Some of Decathlon's products may be eligible for the voluntary labeling program. 47 CFR 8.205. Applicants for the voluntary labeling program must submit their products for testing and certify in their application that the applicant has taken every reasonable measure to create a securable product. 47 CFR 8.208. If the application is accepted, the FCC will allow the product to use the Cyber Trust Mark. 47 CFR 8.209.

California Law (batteries and CEC Battery Charging System): If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements. There are also specific requirements for battery charging systems under California law; please see the corresponding section of the Sun Charger, Electrical Charger, USB Charger card for a description of these requirements, if applicable.

California (electronics recycling): In order to sell a covered electronic device in California, the device must be labeled with the name of the manufacturer or the manufacturer's brand label, so that it is readily visible. [CA Pub. Res. Code 42465.1](#). Additional information about CA electronics requirements is available [here](#).

Illinois Law (electronics recycling): No retailer may sell any computer in Illinois unless the computer is labeled with a brand and the label is permanently affixed and readily visible and the manufacturer is registered with the Illinois Environmental Protection Agency and has paid the required registration fee ([Illinois Consumer Electronics Recycling Act](#)). Retailers must also provide each residential consumer with information from the Agency's website that provides information detailing where and how a consumer can recycle a CED or return a CED for reuse.

In addition, manufacturers must develop and maintain a consumer education program that complements and corresponds to the primary retailer-driven campaign requirements described above. The education program must promote the recycling of electronic products and proper end-of-life management of the products by consumers.

Massachusetts Law (mercury-added products): No one may sell a mercury-added product unless the product is labeled by the manufacturer as follows ([MGL 21H, 310 CMR 75](#)). A "mercury-added product" is a product to which the manufacturer intentionally introduces mercury, including, but not limited to, electric lamps, thermostats, automotive devices, electric switches, medical or scientific instruments, electric relays or other electrical devices.

The label must clearly inform the purchaser that mercury is present in the product and that the product shall be reused, recycled or properly disposed of as hazardous waste. The label must be constructed of materials that are sufficiently durable to remain legible for the useful life of the product. Manufacturers of products that contain an irremovable mercury-containing lamp used for backlighting shall meet the product labeling requirements of this section by placing the label on the product or its care and use manual. These laws do not apply to the labeling of those products whose only mercury component is a removable mercury-added lamp or button cell battery.

Before a mercury-added product is sold in Massachusetts, the manufacturer must 1) submit a compliant labeling plan to the Massachusetts Department of Environmental Protection, or 2) label the product in compliance with a labeling plan approved by another state that is a member of the Interstate Mercury Education and Reduction Clearinghouse.

Where labels on the product or product packaging are not clearly visible and legible to prospective purchasers and product users prior to purchase, (e.g., in sales transactions that occur over the internet, telephone or postal service), the manufacturer or retailer must clearly inform the purchaser 1) that the product contains mercury and shall clearly specify that the mercury-added product be reused, recycled or properly disposed of as hazardous waste at the end of the product's useful life 2) as part of the product's description either in the catalog or on the website used to place the online order.

New York (electronics recycling): ["Covered electronic equipment", including tactile pads, must have a visible, permanent label clearly identifying the product's manufacturer. \(Environmental Conservation Law § 27-2609\).](#)

New York (mercury-added consumer products): The labeling of “mercury-added consumer products” (see definitions section) must clearly and conspicuously state that mercury is present in the product and the product must not be disposed of or placed in a waste stream destined for disposal in mixed municipal solid waste until the mercury is removed and reused, recycled or otherwise managed to ensure that the mercury does not become part of solid waste or contaminate groundwater. ([Environmental Conservation Law § 27-2103](#)). The labeling must be conspicuous to the consumer prior to purchase, and during the installation and removal of the product, and affixed to the product so as to remain legible for the useful life of the product.

Texas (electronics recycling): Before a manufacturer may offer computer equipment for sale in this state, the manufacturer shall: (1) adopt and implement a recovery plan; and (2) affix a permanent, readily visible label to the computer equipment with the manufacturer's brand(s). [30 TAC 328.137](#). Additional manufacturer information available [here](#).

Washington (electronics recycling): No person may sell or offer for sale an electronic product in the state unless the electronic product is labeled with the manufacturer's brand. The label must be permanently affixed and readily visible. [RCW 70A.500.160](#).

Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

Federal Law:

For FCC labeling requirements, see the preceding section of this card.

For requirements applicable to products that contain batteries please see the "Batteries" card.

For requirements applicable to products that have Battery Charging Systems, please see the Sun Charger, Electrical Charger, USB Charger card.

California Law (batteries and battery charging systems): If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements.

There are also specific requirements for battery charging systems under California law (some of which provide exemptions for federally regulated BCS); please see the corresponding section of Sun Charger, Electrical Charger, USB Charger card for a description of these requirements, if applicable.

Massachusetts Law (mercury-added products): In addition to the label on the product, the packaging for a mercury-added product must also be labeled, except when the product label can easily be viewed through the packaging, to inform prospective purchasers and product users, prior to purchase, that the product contains mercury and will need to be managed properly at the end of its useful life ([MGL 21H, 310 CMR 75](#)). The label must be consistent with the product labeling requirements.

Where labels on the product or product packaging are not clearly visible and legible to prospective purchasers and product users prior to purchase, (e.g., in sales transactions that occur over the internet, telephone or postal service), the manufacturer or retailer must clearly inform the purchaser 1) that the product contains mercury and shall clearly specify that the mercury-added product be reused, recycled or properly disposed of as hazardous waste at the end of the product's useful life 2) as part of the product's description either in the catalog or on the website used to place the online order.

New York (mercury-added consumer products): The labeling of “mercury-added consumer products” (see definitions section) must clearly and conspicuously state that mercury is present in the product and the product must not be disposed of or placed in a waste stream destined for disposal in mixed municipal solid waste until the mercury is removed and reused, recycled or otherwise managed to ensure that the mercury does not become part of solid waste or contaminate groundwater. ([Environmental Conservation Law § 27-2103](#)). The labeling must be conspicuous to the consumer prior to purchase, and during the installation and removal of the product, and affixed to the product so as to remain legible for the useful life of the product.

Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ? In which format, do we have to deliver the instruction manual to our customers ?

For requirements applicable to "intentional radiators," please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to unintentional radiators (if applicable) please see the Sun Charger, Electrical Charger, USB Charger card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" and "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

Warnings - General ones

Are general warnings required ? If yes, which ones ?

General instructions or labels should identify all reasonably foreseeable hazards associated with a product and state the consequences of consumer actions explicitly. See CPSC, [Manufacturer's Guide to Developing Consumer Product Instructions](#) (October 2003).

For requirements applicable to "intentional radiators," please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to unintentional radiators, please see the Sun Charger, Electrical Charger, USB Charger card.

Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

Federal Law:

Batteries (general): If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements.

Illinois Law (lead): No one may sell any lead-bearing substance that may be used by the general public, unless it bears a warning statement as provided by federal law ([410 ILS 45](#)). If no federal rule exists, lead-bearing substances that contain lead-based paint or other form of lead must be labeled as: ""WARNING CONTAINS LEAD. MAY BE HARMFUL IF EATEN OR CHEWED. MAY GENERATE DUST CONTAINING LEAD. KEEP OUT OF THE REACH OF CHILDREN." The warning statement must be located in a prominent place on the item or package, such that consumers are likely to see the statement when it is examined under retail conditions. The statement must be conspicuous and not obscured by other written matter. The statement must be legible and contrast with the typography, layout, and color of the other printed matter. Compliance with [16 CFR 1500.121](#) constitutes compliance with these display requirements. The manufacturer or importer of record is responsible for complying with these requirements. This requirement does not apply to any component part of a consumer electronic product, including, but not limited to, personal computers, audio and video equipment, calculators, wireless phones, game consoles, and handheld devices incorporating a video screen used to access interactive software and their associated peripherals, that is not accessible to a child through normal and reasonably foreseeable use of the product. A component part is not accessible if the component part is not physically exposed by reason of a sealed covering or casing and does not become physically exposed through reasonably foreseeable use and abuse of the product. Paint, coatings, and electroplating, singularly or in any combination, are not sufficient to constitute a sealed covering or casing. Coatings and electroplating are sufficient to constitute a sealed covering for connectors, power cords, USB cables, or other similar devices or components used in consumer electronics products.

"Lead-bearing substance" means any item containing or coated with lead such that the lead content is more than six-hundredths of one percent (0.06%) lead by total weight; or more than 1 milligram per square centimeter in the dried film of paint or previously applied substance.

Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

Federal law does not require that a specific age range be specified, however, if the product would be more hazardous for children below a certain age (e.g., because of use or potential misuse), we recommend stating a minimum age to reduce potential liability for use by children below that age.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Federal Law

Country of Origin Marking Requirements

Failure to adhere to Country of Origin Marking Requirements may result in imposition of an additional 10% duty, withholding of release from U.S. Customs until properly marked, and reimbursement of expenses of customs officials overseeing same.

FCC Radio Frequency Devices

The FCC may issue a cease and desist order to any person violating the FCC's radio frequency rules. [47 U.S.C § 312\(b\)](#). For details applicable to "intentional radiators," please see the "Electronic equipment with Bluetooth" card. For details applicable to unintentional radiators, please see the Sun Charger, Electrical Charger, USB Charger card.

Please see the Batteries card for penalties related to violation of battery and DOE-regulated battery charging systems regulations.

California Law (batteries and battery charging systems): If this product contains batteries, please see the corresponding section of the "Batteries" card for penalty information. There are also specific requirements for battery charging systems under California law. Violations of the California Appliance Energy Efficiency Regulations, applicable to battery charging systems, are subject to administrative civil penalties of up to \$2,500 per unit. [20 CCR § 1609\(b\)\(1\)](#); [Cal. Pub. Res. Code § 25402.11\(a\)\(1\)](#). See the Sun Charger, Electrical Charger, USB Charger card for additional details.

California (electronics): Civil liability in an amount of up to twenty-five thousand dollars (\$25,000) may be administratively imposed by the board against manufacturers for failure to comply with the electronics recycling act, except as otherwise provided in subdivision (a) for failure to collect recycling fees. [CA Pub Res 42474\(c\)](#).

[Illinois Law \(electronics recycling\)](#): A retailer who violates these provisions is liable for a civil penalty of \$7,000 per violation provided that the penalty for failure to register or pay a fee under this Act shall be double the applicable registration fee ([Illinois Consumer Electronics Recycling Act](#)). A manufacturer that is not registered with the Agency or has not paid the registration fee is liable for a civil penalty not to exceed \$10,000 for the violation and an additional civil penalty not to exceed \$10,000 for each day the violation continues. Manufacturers who fail to develop and maintain a consumer education program are liable for a civil penalty up to \$5,000.

Illinois Law (lead): A manufacturer or importer who fails to properly label lead-bearing substances subject to a civil fine between \$50 and \$5,000 per day and could face criminal penalties as well ([410 ILS 45](#)).

Massachusetts Law (mercury-added products): A violation of this law may be punished by a fine of up to \$25,000 and/or imprisonment for up to two years for each violation; or a civil penalty up to \$25,000 for each violation. Each day each violation occur is a separate offense ([MGL 21H](#)).

New Jersey (electronics recycling): Violations of New Jersey's electronics labeling requirements is subject to a civil administrative penalty of not less than \$500 nor more than \$1,000 for each violation, provided that each day during which the violation continues shall constitute an additional, separate and distinct offense. [NJSA C.13:1E-99.110\(g\)](#).

New York (electronics recycling): Violation of New York's law regarding labeling "covered electronic equipment" is punishable with a fine of up to \$1,000 for the first violation, \$2,500 for the second violation, and \$5,000 for third and subsequent violations. ([Environmental Conservation Law § 71-2729](#)).

New York (mercury-added consumer products): Violation of New York's mercury-added consumer products labeling rules is punishable by a fine of up to \$100 for the first violation and up to \$500 for additional violations. ([Environmental Conservation Law § 71-2724](#)).

Texas (electronics recycling): The amount of the penalty assessed against a manufacturer that does not label its computer equipment or covered television equipment or adopt and implement a recovery plan as required by Section 361.955, 361.975, or 361.978, Health and Safety Code, as applicable, may not exceed \$10,000 for the second violation or \$25,000 for each subsequent violation. A penalty under this subsection is in addition to any other penalty that may be assessed for a violation of Subchapter Y or Z, Chapter 361, Health and Safety Code. [TX Water Code Sec. 7.052\(b-1\)](#).

Washington (electronic recycling): A manufacturer that does not meet the compliance obligations of the law within 30 days of receiving a warning letter will be assessed a penalty of up to \$1,000 for labeling violations. Second and subsequent violations shall be assessed penalties of up to \$2,000. [WAC 173-900-260](#).

Comments

Comments

Environment

Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

For requirements applicable to products that contain batteries, please see the "Batteries" card.

California Law

Mobile Phone Recycling

The [California Cell Phone Recycling Act of 2004](#) requires that if Decathlon sells mobile phones in California (even if only via the internet), it must put in place a system with the following elements:

- (1) The take-back from the consumer of a used cell phone that the retailer sold or previously sold to the consumer, at no cost to that consumer. The retailer may require proof of purchase.
- (2) The take-back of a used cell phone from a consumer who is purchasing a new cell phone from that retailer, at no cost to that consumer.
- (3) If the retailer delivers a cell phone directly to a consumer in this state, the system provides the consumer, at the time of delivery, with a mechanism for the return of used cell phones for reuse, recycling, or proper disposal, at no cost to the consumer.

[Cal. Pub. Res. Code § 42494.](#)

If Decathlon also provides customers the opportunity to sign a contract for cell phone service, Decathlon must also:

(4) Make information available to consumers about cell phone recycling opportunities provided by the retailer and encourage consumers to utilize those opportunities. This information may include, but is not limited to, one or more of the following:

- (A) Signage that is prominently displayed and easily visible to the consumer.
- (B) Written materials provided to the consumer at the time of purchase or delivery, or both.
- (C) Reference to the cell phone recycling opportunity in retailer advertising or other promotional materials, or both.
- (D) Direct communications with the consumer at the time of purchase.

[Cal. Pub. Res. Code § 42494.](#)

California (electronics recycling): Electronic products with a screen size of greater than 4 inches measured diagonally, which are capable of playing a moving image (video display devices), may be subject to the California Electronic Waste Recycling Act unless they meet an exemption. The law requires several things:

- (1) restricts the hazardous materials that may be part of the product (material restrictions are based on EU RoHS, so if the product is RoHS compliant than it complies with the material restrictions of this law;)
- (2) Retailer must collect an advance recovery fee (paid by consumer at time of sale) and send the fee to the [CA Department of Tex and Fee Administration](#) to fund the recovery and recycling of the devices by qualified entities;
- (3) requires manufacturers to report on sales volume and hazardous substances used (if any).

Statute: [Cal. Pub. Res. Code §§ 42464 - 42486](#); [Cal. Health & Saf. Code §§ 25214.9 to 25214.10.2](#)

Regulations: <https://www2.calrecycle.ca.gov/Docs/Web/117057>

Manufacturer information: <https://calrecycle.ca.gov/electronics/manufacturer/>

Program overview <https://calrecycle.ca.gov/electronics/> , <https://calrecycle.ca.gov/Electronics/CEW/>

Illinois Law (electronics recycling): "Covered electronic device" or "CED" means any computer, computer monitor, television, printer, electronic keyboard, facsimile machine, videocassette recorder, portable digital music player that has memory capability and is battery powered, digital video disc player, video game console, electronic mouse, scanner, digital converter box, cable receiver, satellite receiver, digital video disc recorder, or small-scale server sold at retail. [415 ILCS 151](#). Note that this law is repealed on December 31, 2026. [415 ILCS 151/1-90](#). Manufacturers of CEDs must register and operate a manufacturer program either individually or as part of the manufacturer clearinghouse as required in the Consumer Electronics Recycling Act. [415 ILCS 151/1-30\(e\)](#). The manufacturer's name must also be permanently affixed to, and readily visible on, the CED. [415 ILCS 151/1-30\(f\)](#).

Each manufacturer who sells CEDs in the State must register with the Agency by: (i) submitting to the Agency a \$5,000 registration fee; and (ii) completing and submitting to the Agency the registration form prescribed by the Agency. Information on the registration form shall include, without limitation, all of the following:

- (1) a list of all of the brands and labels under which the manufacturer's CEDs are sold or offered for sale in the State; and

(2) the total weights, by CED category, of CEDs sold in the United States to individuals, under any of the manufacturer's brands or labels, during the calendar year that is 2 years before the applicable program year. [415 ILCS 151/1-30\(a\)](#).

Additional information regarding manufacturer collection obligations is available [here](#) and [here](#).

Massachusetts Law (mercury-added products): No person may sell or distribute a mercury-added product in Massachusetts unless the manufacturer has created and filed with the Massachusetts Department of Environmental Protection a collection plan for end-of-life mercury-added products, including a manufacturer take-back system or a recycling plan, the requirements of which are detailed in the regulations ([MGL 21H, 310 CMR 75](#)). A "mercury-added product" is a product to which the manufacturer intentionally introduces mercury, including, but not limited to, electric lamps, thermostats, automotive devices, electric switches, medical or scientific instruments, electric relays or other electrical devices. Every manufacturer of mercury-added products sold in Massachusetts is financially responsible for the collection and recycling systems and must pay an annual registration fee. These laws do not apply to mercury-added button cell batteries; mercury-added formulated products intended to be totally consumed in use, such as reagents, cosmetics, pharmaceuticals and other laboratory chemicals; or products where the only mercury contained in the product comes from a removable mercury-added button cell battery or a mercury-added lamp.

New Jersey Law (electronics recycling): [Electronics Manufacturers \(either individually or as part of a group\) are required to submit Collection Plans each year for the Department's review and approval. Generally, Collection Plans are required to be submitted by June 1 to describe the Manufacturer's \(or group's\) collection of electronics waste for the following calendar year \(Example: 2014 Collection Plans are due June 1, 2013\). These Plans are now required to be submitted electronically via NJDEP Online. REQUIRED CONTENT OF A COLLECTION PLAN](#)

[A manufacturer that chooses to submit a collection plan as part of a group shall, at least 20 days prior to the submittal of each group collection plan, participate in the preparation and submission to the Department of a Group Designation Form. GROUP DESIGNATION FORM](#)

The collection obligation for manufacturers of covered electronic devices (other than televisions) is the total weight of covered electronic devices that a manufacturer is responsible to collect, transport and recycle each program year. See [here](#) for a posting of annual collection obligations.

New York (electronics recycling): The NYS Electronic Equipment Recycling and Reuse Act (Act), which is based on the concept of product stewardship or extended producer responsibility, places responsibility for managing end-of-life covered electronic equipment (CEE) primarily on manufacturers, with oversight by the Department of Environmental Conservation (Department). [Manufacturers may meet their take back obligations through individual or collective electronic waste acceptance programs. Described in more detail below are requirements for:](#)

- [manufacturers participating in an individual electronic waste acceptance program](#)
- [manufacturers participating in a collective electronic waste acceptance program](#)

Also available to manufacturers of CEE are answers to some of the most [frequently asked questions](#) regarding the [Act](#).

The program has several steps, including one time manufacturer registration (see certifications/registration portion of this card); submission of an electronic waste acceptance program plan that meets the requirements of the [Act](#); and submission of an annual report form; annual reporting fee; and recycling surcharge (if applicable). The annual reporting fee is \$3,000 and annual reports are due by March 1st of each year for the previous year. See this [guidance page](#) for additional information.

Washington Law (electronic recycling): Manufacturers of and retailers that sell certain covered electronic products (CEPs) in Washington must comply with registration, labeling, fee, and recycling requirements ([RCW 70.95N, WAC 173-900](#)). CEPs include 1) any monitor having a viewable area greater than four inches when measured diagonally, 2) a laptop or portable computer, and 3) any video display device having a viewable area greater than four inches when measured diagonally. Certain products are specifically excluded, including cell phones.

[Manufacturers of CEPs must register with the Department of Ecology before sale of CEPs begin in Washington and must also annually update their registration. Manufacturers must also label CEPs with manufacturer information and pay an administrative fee as determined by Ecology. In addition, manufacturers must participate in a recycling plan, as dictated by the relevant laws and regulations cited above. Retailers must ensure that the manufacturer of its products is on the registration list and that the product is labeled with the manufacturer's brand name.](#)

Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

None identified.

Technical rules / Standards

General safety requirements

What are the general safety requirements ? Does a risk assessment have to be conducted ? If yes, does it concern specific risk ?

None identified.

Mandatory or voluntary standards

Are there some mandatory or voluntary standards applicable ? If yes, which ones ?

Please indicate the reference of the applicable standards

Federal Law:

FCC Radio Frequency Devices

For requirements applicable to "intentional radiators," which include mobile phones, please see the "Electronic equipment with Bluetooth" card. In addition to the requirements described there, mobile phones must also comply with additional FCC regulations regarding radio frequency exposure. These requirements are spelled out in detail in [47 C.F.R. § 2.1093](#). These limits are "based generally on criteria published by the American National Standards Institute (ANSI) for localized specific absorption rate ("SAR") in Section 4.2 of "IEEE Standard for Safety Levels with Respect to Human Exposure to Radio Frequency Electromagnetic Fields, 3 kHz to 300 GHz," ANSI/IEEE C95.1–1992, Copyright 1992 by the Institute of Electrical and Electronics Engineers, Inc., New York, New York 10017." The specific absorption rate limits for mobile phones are 0.08 W/kg, as averaged over the whole body, and a peak spatial-average SAR of 1.6 W/kg, averaged over any 1 gram of tissue (defined as a tissue volume in the shape of a cube). [47 C.F.R. § 2.1093\(d\)\(2\)](#).

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card.

Please see the "Camera video (with laser device)" card for requirements applicable to regulated "laser products."

Note Radio Frequency devices are regulated by the FCC under the provisions of 47 CFR Parts 2 and 15 (please review as part of the substantive requirements).

Also note that Radiation-producing electronic devices are regulated by the FDA under the Food, Drug and Cosmetic Act (FDCA) and the Radiation Control for Health & Safety Act of 1968 (RCHSA). You must also file an Electronic Product Declaration, Form FD2877 for each product type for which FDA standards exist.

California Law (batteries and battery charging systems): If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements. There are also specific energy efficiency requirements for battery charging systems under California law; please see the corresponding section of the Batteries card for a description of these requirements, if applicable.

California Law, Security of Connected Devices: As of January 2020, California law requires that all manufacturers equip “connected devices” with reasonable security features. The law defines “connected device” as “any device, or other physical object that is capable of connecting to the internet, directly or indirectly, and that is assigned an internet protocol address or Bluetooth address.” CA Civ Code § [1798.91.05](#). The specifications are as follows:

(a) A manufacturer of a connected device shall equip the device with a reasonable security feature or features that are all of the following:

(1) Appropriate to the nature and function of the device.

(2) Appropriate to the information it may collect, contain, or transmit.

(3) Designed to protect the device and any information contained therein from unauthorized access, destruction, use, modification, or disclosure.

(b) Subject to all of the requirements of subdivision (a), if a connected device is equipped with a means for authentication outside a local area network, it shall be deemed a reasonable security feature under subdivision (a) if either of the following requirements are met:

(1) The preprogrammed password is unique to each device manufactured.

(2) The device contains a security feature that requires a user to generate a new means of authentication before access is granted to the device for the first time.

(c) A manufacturer of a connected device may elect to satisfy the requirements of subdivision (a) by ensuring the connected device does all of the following:

(1) Meets or exceeds the baseline product criteria of a NIST conforming labeling scheme.

(2) Satisfies a conformity assessment as described by a NIST conforming labeling scheme that includes a third-party test, inspection, or certification.

(3) Bears the binary label as described by a NIST conforming labeling scheme.

“NIST conforming labeling scheme” means a labeling scheme conforming to the Cybersecurity White Paper titled “Recommended Criteria for Cybersecurity Labeling for Consumer Internet of Things (IoT) Products” published by the National Institute of Standards and Technology (NIST) on February 4, 2022, including any revisions or successor publications.

CA Civ Code [§ 1798.91.04–06](#).

Voluntary Standards/Certifications

There are many voluntary standards that apply to products that contain electrical and battery components. These standards include those issued by UL, ANSI, ASTM, and IEEE, among others. While complying with these voluntary standards is expensive and not mandatory to sell products in the U.S. market, meeting at least one applicable voluntary safety standard is the norm and is important to ensure product safety and minimize liability if a product covered by these standards malfunctions in some way.

UL voluntary standards are particularly important for wall-powered and battery-powered devices, as UL standards are generally expected for products on the U.S. market. Depending on the product and safety standard, some CE standards may be equivalent to UL or other standards. Decathlon may want to consult with an experienced testing lab regarding its electronic and battery-powered products to see if other qualifications they have, such as CE mark, cover the same areas as the UL standard applicable to that product.

One way product manufacturers can certify that a product complies with a voluntary standard is by working with a Nationally Recognized Testing Laboratory (NRTL). NRTLs are designated by the U.S. Occupational Safety and Health Administration (OSHA), which regulates certain equipment found in workplaces. OSHA's regulations are generally not applicable to the sale of consumer products; however, NRTLs have become the standard for consumer product safety certification. There are nearly twenty different NRTLs recognized by OSHA, a list of which can be found [here](#). Each NRTL has their own registered certification mark that may accompany a product that has been tested and certified for a certain standard by that NRTL. Note that UL is both a NRTL and a standard author. Other NRTLs, apart from UL, can certify that a product meets a UL standard. However, the mark on the product will be that of the NRTL, not of UL. To obtain a UL mark, the product must be tested by UL itself.

Physical and mechanicals properties

What are the physical and mechanicals properties required ?

Federal Law:

FCC Radio Frequency Devices

For requirements applicable to "intentional radiators," which include mobile phones, please see the "Electronic equipment with Bluetooth" card.

In addition to the requirements described there, mobile phones must also comply with additional FCC regulations regarding radio frequency exposure. [47 C.F.R. § 2.1093](#). The specific absorption rate limits for mobile phones are 0.08 W/kg, as averaged over the whole body, and a peak spatial-average SAR of 1.6 W/kg, averaged over any 1 gram of tissue (defined as a tissue volume in the shape of a cube). [47 C.F.R. § 2.1093\(d\)\(2\)](#).

Please see the "Camera video (with laser device)" card for requirements applicable to regulated "laser products."

Electrical aspects

What are requirements regarding electrical aspects ?

For requirements applicable to products that contain batteries, please see the "Batteries" card.

For requirements applicable to products that contain Battery Charging Systems, please see the "Sun Charger, Electrical Charger, USB Charger" card.

Inflammability

Are there any specific requirements to ensure inflammability?

None identified.

Hygiene

What are the rules regarding hygiene ?

None identified.

Radioactivity

What are the rules regarding radioactivity ?

None identified.

Radiofrequency (2G,3G,4G,5G, Bluetooth, Ant+, GPS, Wifi...)

What are the rules regarding the radiofrequency?

See the "Electronic equipment with Bluetooth" card for further information on regulations applicable to intentional radiators, if applicable.

Products making noise

What are the requirements regarding products making noise ?

None identified.

Chemicals substances

What are the requirements regarding chemicals substances ? Which ones are forbidden ? Limited ? Do we have to clearly indicate all substances that are in the product, or is the indication of major substances enough?"

Batteries (general): If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements.

California Law:

California Law (RoHS-like requirements): Based on our understanding of Decathlon's electronic products with Bluetooth, it does not appear that these products will be in scope of California's RoHS-like legislation (restricting certain heavy metals in covered electronics). The RoHS-like restrictions apply to products screens greater than four inches in size (measured diagonally), that have playback functionality, and are either a:

1. Cathode ray tube containing devices (CRT devices)
2. Cathode ray tubes (CRTs)
3. Computer monitors containing cathode ray tubes
4. Laptop computers with liquid crystal display (LCD)
5. LCD containing desktop monitors
6. Televisions containing cathode ray tubes
7. Televisions containing liquid crystal display (LCD) screens
8. Plasma televisions
9. Portable DVD players with LCD screens

However, if any of the electronic products in other Decathlon categories fit the CA covered electronic device definition, they would be subject to the material restrictions and reporting requirements in California. See

- California's RoHS Law: [Health and Safety Code sections 25214.9-25214.10.2](#)
- California's RoHS regulations: [California Code of Regulations, title 22, section 66260.202](#)
- <https://dtsc.ca.gov/toxics-in-packaging-information-for-purchasers-fact-sheet/>

See the Chemical Substances Insert for additional information.

Packaging requirements

Can you please indicate if there are some requirements regarding the packaging of our products (mainly they are in paper, carton, plastic, textile) ? If yes, please explain them.

Federal Law: None identified

Laboratory

In which laboratory can we perform the testing of the product according to the standard?

Federal Law:

FCC Radio Frequency Devices

Mobile phones are subject to FCC's "Certification" authorization process, which requires testing. In addition, mobile phones must also comply with additional FCC regulations regarding radio frequency exposure, which require additional testing. [47 C.F.R. § 2.1093](#).

"Certification" must be conducted at a FCC Recognized Testing Laboratory. See [FCC guidance](#). The testing laboratory is required to maintain a record of the measurement facilities as specified in [47 C.F.R. § 2.948](#). Search for an accredited laboratory here: <https://apps.fcc.gov/oetcf/eas/reports/TestFirmSearch.cfm>.

Testing requirements for radio frequency SAR exposure are described in [47 C.F.R. § 2.1093](#).

For federal and California requirements applicable to products that contain batteries, please see the "Batteries" card.

For federal and California requirements applicable to products that contain Battery Charging Systems, please see the "Sun Charger, Electrical Charger, USB Charger" card.

California Law:

Proposition 65: Proposition 65 does not require testing, however, if a company is aware that a listed chemical is present and wishes to determine that a warning label is not required (i.e., to justify a decision not to provide a warning), testing may be conducted at any outside laboratory that is familiar with Proposition 65.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

For penalties associated with packaging violations, please see the packaging technical requirements section above.

Federal Law:

The FCC may issue a cease and desist order to any person violating the FCC's radio frequency rules. [47 U.S.C. § 312\(b\)](#).

In addition, the act of selling or leasing, offering to sell or lease, or importing a digital device that has not gone through the appropriate FCC equipment authorization procedure that is a violation of the Commission's rules and federal law, and may be subject to:

- o forfeiture of all non-compliant equipment
- o an administrative fine of up to 10,000/day per violation
- o up to \$100,000/\$200,000 criminal penalty for an individual/ organization
- o a criminal fine totaling twice the gross gain obtained from sales of the non-compliant equipment

Other than knowing and willful or repeated violations, most violations are settled via a negotiated civil penalty. See recent settlements for FCC enforcement actions related to radio frequency devices here: <http://transition.fcc.gov/eb/marketing/>.

For sanctions applicable to products that contain batteries, please see the "Batteries" card.

For sanctions applicable to products that contain Battery Charging Systems, please see the "Sun Charger, Electrical Charger, USB Charger" card.

Please see the "Camera video (with laser device)" card for sanctions applicable to regulated "laser products."

California (Proposition 65): Any person who violates Proposition 65 by failing to provide a required warning regarding exposure to Proposition 65 listed chemicals may be liable for a civil penalty of up to \$2,500 per day for each violation. [Health & Saf. Code § 25249.7](#). In practice, Proposition 65 cases are typically settled with an average settlement amount in the \$50,000 range plus an agreement to either reformulate or provide Proposition 65 warnings for the product.

California (electronics recycling): California prohibits the sale of a covered electronic device if the device is prohibited from being sold or offered for sale in the European Union on or after its date of manufacture due to the concentration of one or more heavy metals in the device exceeding its maximum concentration value, as specified in the Commission of European Communities' Decision of August 18, 2005, amending Directive 2002/95/EC (European Union document 2005/618/EC). See regulatory provision [here](#). Civil liability in an amount of up to twenty-five thousand dollars (\$25,000) may be administratively imposed by the board against manufacturers for failure to comply with the electronics recycling act, except as otherwise provided in subdivision (a) for failure to collect recycling fees. [CA Pub Res 42474\(c\)](#).

California (PBDEs): California law does not expressly set penalties for violations of its rules regarding PBDEs. The California Attorney general, however, has stated that violation of California's similar phthalates ban is a violation of California's Unfair Competition Law ([Cal. Bus. and Prof. Code § 17200](#)). See guidance letter [here](#). Violations of that law are subject to civil penalties of up to \$2,500 per violation. Presumably, violations of California's rules on and PBDEs will be subject to similar punishment.

California Law (batteries and battery charging systems): If this product contains batteries, please see the corresponding section of the Batteries card for penalty information. There are also specific requirements for battery charging system under California law. Violations of the California Appliance Energy Efficiency Regulations, applicable to battery charging systems, are subject to administrative civil penalties for each non-compliant unit sold or offered for sale in California. [20 CCR § 1609\(a\)\(2\)](#). The enforcement regulations provide for civil penalties up to a maximum of \$2,500 per unit. [20 CCR § 1609\(b\)\(1\)](#); [Cal. Pub. Res. Code § 25402.11\(a\)\(1\)](#).

Illinois Law (flame retardants): A person who manufactures or distributes products containing more than 0.001% of pentaBDE or octaBDE is subject to a fine between \$10,000 and \$25,000 for each violation ([410 ILCS 48](#)).

Maine Law (toxic chemicals): Violators may be subject to a \$2,500-\$25,000 criminal penalty for each day of the violation, except the minimum amount for knowing violations is \$5,000 for each day of the violation. Violators may be subject to a \$100-\$10,000 civil penalty for each day of the violation or, if the violation relates to hazardous waste, of not more than \$25,000 for each day of the violation. [38 M.R.S. § 349](#).

Maine Law (lead): This section may be enforced in a civil action brought by the Attorney General under the Maine Unfair Trade Practices Act, except that the following provisions apply as penalties for violations of this section.

A. For the first violation by a manufacturer a warning must be given instead of an enforcement by the Attorney General if the employer has the equivalent of 25 or fewer full-time, year-round employees.

B. For all other violations the following provisions apply as penalties for violations of this section.

(1) For the first violation of this section, the penalty is not more than \$100 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$5,000.

(2) For a 2nd violation of this section, the penalty is not more than \$500 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$25,000.

(3) For a 3rd or subsequent violation of this section, the penalty is not more than \$1,000 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$50,000.

(4) A penalty under this section may be waived by the court if it is determined that the person in good faith and with due diligence attempted to comply with the requirements of this section and promptly corrected after discovery any noncompliance with this section. [252 M.R.S. 1316-A](#).

Massachusetts Law (lead): A person who applies lead-based paint or glaze to a covered product or sells such a product is subject to a fine between \$100 and \$500 for each violation ([MGL 111.196](#), [105 CMR 460](#)). Each article to which a lead-based substance is applied constitutes a separate violation. A person who willfully applies a lead-based substance to a toy or sells such a toy is subject to imprisonment for up to three months for each violation. In addition, any article of personal property in violation of the lead-based substance law may be embargoed by the Massachusetts Department of Environmental Protection.

Massachusetts Law (banned hazardous substances): Violators are subject to a fine between \$100 and \$500 and/or imprisonment up to 90 days on the first offense and on subsequent offenses, subject to imprisonment for up to 1 year and/or a fine between \$600 and \$3,000 ([MGL 94B § 4](#)). When an authorized inspector has probable cause to believe that a product is a banned hazardous substance, he must mark the substance as banned and give notice to the manufacturer, the distributor, and the owner of the product ([MGL 94B § 5](#)). He must also embargo the product. The manufacturer, distributor, or owner may remove the product from public display but may not remove it from the premises. The product will be considered a banned hazardous substance until the proceedings are complete. If the court finds that the embargoed article is banned, the article will be destroyed at the expense of the manufacturer, distributor, or owner under supervision of the inspector, and all court costs and fees and storage expenses will be taxed against the manufacturer, distributor or owner.

New York Law (flame retardants): Violation of New York's law regarding brominated flame retardants is also a misdemeanor; each product made, sold or offered for sale is a separate violation. ([Environmental Conservation Law § 37-0111\(5\)](#)).

Washington Law (PBDE ban): The Department of Ecology may issue a warning letter to a manufacturer that produces, sells, or distributes prohibited products (i.e., products containing the banned PBDEs) ([RCW 70.76](#)). If compliance is not achieved one year after the warning letter is sent, the Department of Ecology may assess civil penalties: up to \$1,000/violation for a first offense and up to \$5,000 for each repeat offense. In addition, a manufacturer that knowingly produces, sells, or distributes prohibited products must recall the product and reimburse the retailer or any other purchaser for the product and any applicable shipping and handling for returning the products.

Comments

Comments

Certifications / Registrations

Certifications or registrations

Are there some certifications or registrations applicable to the product ?

Federal Law:

For requirements applicable to "intentional radiators," which include mobile phones, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries, please see the "Batteries" card.

For requirements applicable to products that contain Battery Charging Systems, please see the "Sun Charger, Electrical Charger, USB Charger" card.

Please see the "Camera video (with laser device)" card for requirements applicable to regulated "laser products."

California (CEC Battery Charging System): Under the California Appliance Energy Efficiency Regulations for Battery Charger Systems ("BCS"), BCS must be certified prior to sale or offer for sale in California. Certified products will be listed on the

California Energy Commissions Appliance Efficiency Database of certified BCS products. If a product in this category includes a BCS, please see the Sun Charger, Electrical Charger, USB Charger" card for certification details and instructions.

Illinois Law (electronics recycling): Manufacturers who sell computers and portable digital music players (and other devices not relevant for Decathlon) must register the Illinois Environmental Protection Agency in order to sell their products ([Illinois Consumer Electronics Recycling Act](#)).

Manufacturers mean the person or successor in interest to the person under whose brand or label a computer or portable music player is or was sold at retail. If the brand or label is licensed from a person who is a mere brand owner who does not sell or produce the products, the person who produced the devices is the manufacturer. If the product is sold at retail under the brand or label of both the retail seller and the person that produced the device, the person that produced the device is the manufacturer.

To register, manufacturers must submit:

1. A list of all of their brands of computers and portable digital music players to be offered for sale in the next year
2. A statement disclosing whether any of their computers or portable digital music players old in this State exceed the maximum concentration values established for lead, mercury, cadmium, hexavalent chromium, polybrominated biphenyls (PBBs), and polybrominated diphenyl ethers (PBDEEs) under the [RoHS Directive 2002/95/EC of the European Parliament and Council](#) and any amendments thereto and, if so, an identification of the aforementioned electronic device that exceeds the directive.
3. A payment of the registration fee, which for 2017 is \$5,470 unless during 2016 the manufacturer sold less than 250 units, in which case the fee is \$1,367.

A manufacturer must register within 30 days after the first sale or offer for sale and must submit the registration fee before the electronic devices are sold or offered for sale. For more information regarding registration, including applicable forms, see the Illinois Environmental Protection Agency's website.

Massachusetts Law (mercury-added products): No mercury-added product shall be offered for final sale or use or distributed in the commonwealth without notification in writing by the manufacturer of the product to the department through IMERC within 30 days of the product's release in accordance with this section ([MGL 21H](#)).

New Jersey (electronics recycling): On or before January 1st of each calendar year, each manufacturer of covered electronic devices sold for delivery in New Jersey on and after December 1st of the previous year must register with the Department and pay an annual registration fee. The annual registration fee for a manufacturer of covered electronic devices other than televisions is \$5,000.00. Link to [INITIAL REGISTRATION](#); link to [REGISTRATION RENEWAL](#).

In addition, electronics Manufacturers (either individually or as part of a group) must submit an annual report to the Department by February 1 of the year following a calendar year in which it had a collection obligation. Link to [ANNUAL REPORT FORM](#).

See [here](#) for additional information regarding NJ electronics manufacturer obligations.

Texas (electronic recycling): Before a manufacturer may offer covered electronic equipment for sale in this state, the manufacturer must adopt and implement a recovery plan and have it accepted by the state in order to be listed on [TCEQ's list of computer equipment manufacturers](#). [30 TAC 328.137](#). Manufacturers are required to submit a [notification and recovery plan \(.DOC\)](#) to this address:

Texas Recycles Computers Program
Pollution Prevention and Education, MC-108
Texas Commission on Environmental Quality
P.O. Box 13087
Austin, Texas 78711-3087

Once the TCEQ determines that your plan is compliant, your name will be placed on the [TCEQ's list of computer equipment manufacturers](#). Your name must be on this list before anyone can sell your new computer equipment in or into Texas.

Manufacturers are also required to submit a manufacturers' annual computer recycling report to the TCEQ by January 31 of each year. For this report, you must track the weight of computer equipment collected, recycled, and reused. The 2022 Annual Report form ([available here](#)) for reporting television equipment collected in calendar year 2022 is now available.

Additional information on manufacturer registration and reporting is available [here](#).

Washington Law (electronic recycling): Manufacturers of covered electronic products must register with the Department of Ecology before sale of products begin in Washington and must also annually update their registration ([RCW 70.95N](#), [WAC 173-900](#)). Retailers must ensure that the manufacturer of its products is on the registration list. For more information regarding which products are covered, see the "Environment" tab.

Voluntary Standards/Certifications

There are many voluntary standards that apply to products that contain electrical and battery components. These standards include those issued by UL, ANSI, ASTM, and IEEE, among others. While complying with these voluntary standards is expensive and not mandatory to sell products in the U.S. market, meeting at least one applicable voluntary safety standard is the norm and is important to ensure product safety and minimize liability if a product covered by these standards malfunctions in some way.

UL voluntary standards are particularly important for wall-powered and battery-powered devices, as UL standards are generally expected for products on the U.S. market. Depending on the product and safety standard, some CE standards may be equivalent to UL or other standards. Decathlon may want to consult with an experienced testing lab regarding its electronic and battery-powered products to see if other qualifications they have, such as CE mark, cover the same areas as the UL standard applicable to that product.

One way product manufacturers can certify that a product complies with a voluntary standard is by working with a Nationally Recognized Testing Laboratory (NRTL). NRTLs are designated by the U.S. Occupational Safety and Health Administration (OSHA), which regulates certain equipment found in workplaces. OSHA's regulations are generally not applicable to the sale of consumer products; however, NRTLs have become the standard for consumer product safety certification. There are nearly twenty different NRTLs recognized by OSHA, a list of which can be found [here](#). Each NRTL has their own registered certification mark that may accompany a product that has been tested and certified for a certain standard by that NRTL. Note that UL is both a NRTL and a standard author. Other NRTLs, apart from UL, can certify that a product meets a UL standard. However, the mark on the product will be that of the NRTL, not of UL. To obtain a UL mark, the product must be tested by UL itself.

Laboratory

In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them

Federal Law:

Products such as mobile phones which must follow the Certification procedure are required to be tested by an FCC Recognized Accredited Testing Laboratory. Search for an accredited laboratory here: <https://apps.fcc.gov/oetcf/eas/reports/Test-FirmSearch.cfm>.

For requirements applicable to products that contain batteries, please see the "Batteries" card.

For requirements applicable to products that contain Battery Charging Systems, please see the "Sun Charger, Electrical Charger, USB Charger" card.

California (CEC Battery Charging System): If a product in this category includes a battery charging system ("BCS") as defined above, please see the "Sun Charger, Electrical Charger, USB Charger" card for additional information regarding certification.

Comments

Comments

Conformity documents

Documents

What are the conformity documents ? Can you please list them ?

For requirements applicable to “intentional radiators,” which include mobile phones, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card and "Sun Charger, Electrical Charger, USB Charger" card, respectively.

Please see the “Camera video (with laser device)” card for requirements applicable to regulated “laser products.”

Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

For requirements applicable to “intentional radiators,” which include mobile phones, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card and the "Sun Charger, Electrical Charger, USB Charger" card, respectively.

Comments

Comments

Importation rules

General rules

What are the general rules in order to import the product ?

Federal Law:

FCC Radio Frequency Devices:

“Unintentional” and “intentional” radiators must comply with FCC regulations in order to be imported into the United States. See FCC guidance available [here](#).

Most products, including mobile phones, must be tested and demonstrate compliance to FCC rules for each type of electrical function (referred to as a device) that is contained in a product. An equipment authorization procedure is required before a

product can be marketed, imported or used in the United States. Mobile phones must satisfy FCC's "Certification" process, FCC's most stringent authorization procedure.

Historically, equipment that has been properly tested and documented and/or certified had to be declared by the importer using [Form 740](#). However, note that the requirement to complete Form 740 has been eliminated. See <https://www.fcc.gov/oet/ea/importation>. This change only eliminates the requirement to file Form 740; covered equipment must still comply with FCC regulations.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card and the "Sun Charger, Electrical Charger, USB Charger" card, respectively.

Please see the "Camera video (with laser device)" card for requirements applicable to regulated "laser products."

Please see the Importation Rules Insert for additional information.

Documents

What are the required documents ?

Federal Law:

FCC Radio Frequency Devices

Generally, when importing products and equipment that are considered as radio frequency (RF) devices, importers must declare to the United States Customs Service that the device complies with FCC's import conditions under [47 CFR Part 2 Subpart K § 2.1204](#). However, please note that the requirement to complete Form 740 was suspended. See <https://www.fcc.gov/oet/ea/importation>.

Entry Documents (for U.S. Imports generally):

Within 15 calendar days of the date that a shipment arrives at a U.S. port of entry, entry documents must be filed at a location specified by the port director. These documents are:

- Entry Manifest (CBP Form 7533) or Application and Special Permit for immediate Delivery (CBP Form 3461) or other form of merchandise release required by the port director,
- Evidence of right to make entry,
- Commercial invoice or a pro forma invoice when the commercial invoice cannot be produced,
- Packing lists, if appropriate,
- Other documents necessary to determine merchandise admissibility.

If the goods are to be released from CBP custody at the time of entry, an entry summary for consumption must be filed and estimated duties deposited at the port of entry within 10 working days of the goods' entry.

See <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf> at pp. 12 and 35-37.

Please see the "Camera video (with laser device)" card for requirements applicable to regulated "laser products."

Note Radio Frequency devices are regulated by the FCC under the provisions of 47 CFR Parts 2 and 15 (please review as part of the substantive requirements).

Also note that Radiation-producing electronic devices are regulated by the FDA under the Food, Drug and Cosmetic Act (FDCA) and the Radiation Control for Health & Safety Act of 1968 (RCHSA). You must also file an Electronic Product Declaration, Form FD2877 for each product type for which FDA standards exist.

Time period

In which time period may we obtain the right to import ?

None specified. But see FCC guidance on imports here: <https://www.fcc.gov/oet/ea/importation> and general tips for new importers and exporters here: <http://www.cbp.gov/trade/basic-import-export/importer-exporter-tips>

Administration

What is the administration in charge of importations ? Name and address ?

U.S. Customs & Border Protection

OPA/CBP INFO Center

1300 Pennsylvania Avenue N.W., MS: 1345

Washington, DC 20229

United States of America

Comments

Comments

Helpful CBP publication: <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf>

OPA/CBP INFO Center Phone contact information:
General Inquiries: 877-227-5511

International Callers: 202-325-8000

Inspection of the product

Inspection method

Does it exist an inspection procedure applicable to the product ? If yes, which administration is in charge of ? Can you please describe the procedure ?

U.S. CBP inspects imports generally. FCC also receives information regarding shipments falling within certain tariff codes and may examine or seek additional information regarding same.

FCC representatives may examine or test any radio frequency device that is imported, including intentional or unintentional radiators. If the radio frequency device has already entered the U.S., the subsequent owners must, upon request within one year of the date of entry, make that device available for examination or testing by the FCC. [47 CFR § 2.1207](#).

Commercialization rules

Notification / Declaration

What are the general rules in order to commercialize a product ?
Is there a notification / declaration to do ?

See Certifications/Registrations section. For FCC authorization requirements that must be met prior to marketing an FCC regulated device, see the Electronic Equipment with Bluetooth card.

Documents

What are the required documents ?

See Certifications/Registrations section.

Delay

What is the delay to obtain the right to commercialize ?

None identified.

Display in store

Is there some specific rules on the way to display the product in store ?

California (Proposition 65): None identified, unless a Proposition 65 warning is required for the product under California law and Decathlon chooses to provide the warning via a sign or shelf tag in the store rather than by a marking on the product packaging.

California (Mobile Phone Recycling): If Decathlon provides an opportunity for the customer to sign a contract for cell phone service, the [California Cell Phone Recycling Act of 2004](#) requires that:

The retailer make information available to consumers about cell phone recycling opportunities provided by the retailer and encourage consumers to utilize those opportunities. This information may include, but is not limited to, one or more of the following:

- (A) Signage that is prominently displayed and easily visible to the consumer.
- (B) Written materials provided to the consumer at the time of purchase or delivery, or both.
- (C) Reference to the cell phone recycling opportunity in retailer advertising or other promotional materials, or both.
- (D) Direct communications with the consumer at the time of purchase.

[Cal. Pub. Res. Code § 42494.](#)

Display on internet

Is there some specific mentions to display the product on internet ?

None identified.

Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

Federal Law: For requirements applicable to "intentional radiators," which include mobile phones, please see the "Electronic equipment with Bluetooth" card.

New York (electronics recycling): Manufacturers of covered electronic equipment who sell products into New York must, as part of their electronic waste acceptance program submitted to the state, include a public education program to inform consumers about the manufacturer's electronic waste acceptance program, and must provide sufficient information to allow a consumer of CEE to return CEE for recycling or reuse, and must include:

- an internet website, which includes a listing of each location within the state where consumers may return electronic waste as part of the manufacturer's electronic waste acceptance program; and in the case of manufacturers of computers, hard drives and other CEE that have internal memory on which personal or other confidential data can be stored, instructions for how consumers can destroy such data before surrendering the products for recycling or reuse;

- a toll-free telephone number; and

- written information included in the product manual for, or at the time of sale of CEE, that provides a consumer of CEE to information on how to return CEE for recycling or reuse.

[NY ECL 27-2605\(5\)\(c\)](#). See also [NY Guidance for CEE manufacturers](#).

Comments

Comments

Administration

What is the administration in charge of commercialization ? Name and address ?

None identified.

Documents

[Decathlon - Importation Rules Insert.pdf](#)

[Decathlon - Chemical Substances Insert.pdf](#)